

STATE OF NEW YORK

8412--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 14, 2025

Introduced by M. of A. BICHOTTE HERMELYN -- read once and referred to the Committee on Housing -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public housing law, in relation to succession rights for New York city housing authority properties

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public housing law is amended by adding a new section
2 402-h to read as follows:

3 § 402-h. Succession rights. 1. The New York city housing authority
4 includes, and shall continue to include, policies and procedures allow-
5 ing individuals to claim succession rights to public housing units in
6 properties owned and operated by the New York city housing authority
7 upon the permanent departure or death of the tenant of record from the
8 unit.

9 2. The New York city housing authority shall establish written poli-
10 cies and procedures for asserting succession rights consistent with the
11 requirements of applicable federal, state, and local laws, regulations,
12 and guidance, as they may change from time to time. Such written poli-
13 cies and procedures shall also be consistent with the New York city
14 housing authority's occupancy standards. Such policies and procedures
15 shall include, but not be limited to:

16 (a) eligibility requirements for lease succession;
17 (b) relocation requirements, if any, arising out of lease succession;
18 (c) the requirement to pay use and occupancy during the pendency of
19 succession rights proceedings; and
20 (d) the right to an administrative grievance of the New York city
21 housing authority's denial of succession rights, provided that the
22 grievant is up to date in use and occupancy.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 3. The New York city housing authority shall issue notice in writing
2 of substantive changes to its succession rights policies and procedures
3 at least thirty days prior to implementing those changes, and shall
4 afford an opportunity to provide written comments with respect to the
5 proposed changes. The New York city housing authority shall consider
6 written comments prior to implementation of the proposed changes.

7 § 2. This act shall take effect immediately.